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only that an ambassador is free from personal suit or process, but that his goods are free from such process as distress or seizure, the latter meaning seizure by process of law, it follows that the goods of every sovereign are free from any seizure by process of law.

The latest case on the point seems to be the case of *Vavas seur v. Krupp* (1) before this Court. The question was whether the English Court had jurisdiction to order "shells" belonging to the Mikado of Japan to be destroyed, supposing they were an infringement of the plaintiff's patent. All the judges held that there was no such jurisdiction. "I suppose," says James, L.J., "that there is a notion that in some way these shells became tainted or affected through the breach or attempted breach of the patent, but even then a foreign sovereign cannot be deprived of his property because it has become tainted by the infringement of somebody's patent. He says, 'It is my public property, and I ask you for it.' That seems to me to be the whole of the case." Brett, L.J., said, "The goods were the property of the Mikado. They were his property as a sovereign—they were the property of his country." "I shall assume, for this purpose, that there was an infringement of the patent, yet the Mikado has a perfect right to have these goods; no Court in this country can properly prevent him from having goods which are the public property of his own country." And Cotton, L.J., says, "This Court has no jurisdiction, and in my opinion none of the Courts in this country have any jurisdiction to interfere with the property of a foreign sovereign, more especially with what we call the public property of the state of which he is sovereign, as distinguished from that which may be his own private property. The Courts have no jurisdiction to do so, not only because there is no jurisdiction as against the individual, but because there is no jurisdiction as against the foreign country whose property they are, although that foreign country is represented, as all foreign countries having a sovereign are represented, by the individual who is the sovereign."

The principle to be deduced from all these cases is that, as a consequence of the absolute independence of every sovereign authority, and of the international comity which induces every sovereign state to respect the independence and dignity of every

(1) 9 Ch. D. 351.

other sovereign state, each and every one declines to exercise by means of its Courts any of its territorial jurisdiction over the person of any sovereign or ambassador of any other state, or over the public property of any state which is destined to public use, or over the property of any ambassador, though such sovereign, ambassador, or property be within its territory, and, therefore, but for the common agreement, subject to its jurisdiction.

It is said, however, that there are authorities inconsistent with the view that this is a part of international law. The case of *The Santissima Trinidad* (1) is relied on. But, as was pointed out in the judgment in *Briggs v. The Light-ships* (2), the former case is one depending upon a well-known doctrine of the law of prize, viz., that property captured in breach of the laws of neutrality is held by the prize courts of the neutral state not to be lawful prize. In the case of the *United States v. Wilden* (3) it would be uncandid to say that there are not expressions of Story, J., which are in favour of the contention that the immunity from jurisdiction is confined to ships and materials of war. But in that case the right which was adverse to the United States Government was a possessory lien for general average. The remedy of the shipowner was in his own hands. He required no assistance from any process of any court, as would also be the case in a lien for freight. As a decision, therefore, the case is not in point, because the United States were plaintiffs voluntarily seeking the assistance of the Massachusetts tribunal. But it seems to us sufficient to say that we do not consider the observations of Story, J., to countervail effectually the arguments and decisions in the other cases which have been cited. There is then the opinion of the learned Judge of the Admiralty Division, expressed in the case of *The Charkieh*. (4) The decision is, of course, not in point, because the case was decided on the ground that the Khedive was not an independent sovereign. But there is a careful consideration in the judgment of the question whether the ship would have been liable to the jurisdiction of the Court, in proceedings in rem in respect of a collision, if the Khedive had been a sovereign prince. The conclusion is that she would have been. Such an opinion deserves

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(1) 7 Wheat. 283.
(2) 11 Allen (Mass.), 157.

(3) 3 Sumn. 308.
(4) Law Rep. 4 A. & E. 59.

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respectful attention. We are not quite sure whether we correctly appreciate the grounds of the opinion. The learned judge agrees that "an ambassador is personally exempt from the service of all process in a civil cause and from any action which renders such service necessary;" and that "the law as to the privileges of an ambassador applies with equal force to the sovereign." "But," he continues, "it remains to be considered whether there may not be a proceeding in rem against property of the sovereign or ambassador which is free from the objections fatal to the other modes of procedure." He then says "that he would be prepared to hold that proceedings in rem in some cases may be instituted without any violation of international law, though the owner of the res be in the category of persons privileged from personal suit." This is an intimation of an opinion not yet conclusively formed that proceedings in rem are a legal procedure solely against property, and not directly or indirectly against the owner of the property. But then he says that a proceeding in rem cannot be instituted against the property of a sovereign or an ambassador, if the res can in any fair sense be said to be connected with the jus coronæ of the sovereign, or the discharge of the functions of the ambassador. From this one would infer that no personal process can issue against a sovereign or an ambassador; that no process in rem can issue against any property which can in any fair sense be said to be connected with the jus coronæ, but that such process might issue against other property of a sovereign or an ambassador. But then he says that "it is by no means clear that a ship of war to which salvage services have been rendered may not jure gentium be liable to be proceeded against in a Court of Admiralty for the remuneration of such services." Yet such proceedings are undoubtedly by means of process in rem, and it can hardly be denied that a ship of war is property connected with the jus coronæ. "I am disposed to hold," he says, "that in case of salvage or collision the *obligatio* attaches jure gentium upon the ship whatever be her character, public or private." If this includes a ship of war it seems to us difficult to understand how it is not inconsistent with the principle of the judgment in the cases of *The Exchange* (1) and *Briggs v. The Light-ships*. (2) If it does not

(1) 7 Cranch, 116.

(2) 11 Allen (Mass.), 157.

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include a ship of war, the distinction between other processes and the process in rem is not always an answer in the claim of immunity. But then the learned judge expresses an opinion that in the case before him there was a nearer goal at hand, because it was idle to contend that the ships were not trading vessels to all intents and purposes, though, when engaged in their regular employment they carried mail-bags. This seems to intimate that the ships then in question were not public ships at all. We cannot think that this judgment discloses any final opinion of the learned judge, either as to the limits of the nature of the property which is exempt or as to the whole nature of the action in rem with regard to the question under discussion. Having carefully considered the case of *The Charkieh* (1) we are of opinion that the proposition deduced from the earlier cases in an earlier part of this judgment is the correct exposition of the law of nations, viz., that as a consequence of the absolute independence of every sovereign authority and of the international comity which induces every sovereign state to respect the independence of every other sovereign state, each and every one declines to exercise by means of any of its courts, any of its territorial jurisdiction over the person of any sovereign or ambassador of any other state, or over the public property of any state which is destined to its public use, or over the property of any ambassador, though such sovereign, ambassador or property be within its territory, and therefore, but for the common agreement, subject to its jurisdiction.

This proposition would determine the first question in the present case in favour of the protest, even if an action in rem were held to be a proceeding solely against property, and not a procedure directly or indirectly impleading the owner of the property to answer to the judgment of the Court. But we cannot allow it to be supposed that in our opinion the owner of the property is not indirectly impleaded. The course of proceeding, undoubtedly, is first to seize the property. It is, undoubtedly, not necessary, in order to enable the Court to proceed further, that the owner should be personally served with any process. In the majority of cases brought under the cognizance of an Admiralty Court no such personal service could be effected. Another course

(1) *Law Rep.* 4 A. & E. 59.